ORDER SHEET.
IN THE ISLAMABAD HIGH COURT, ISLAMABAD.
JUDICIAL DEPARTMENT

FAO No. 02 of 2016

Zubair Farooq Khan
Versus
ARP International Pvt. Ltd, etc.

Date of Hearing	:	08.07.2024.
Appellant by	:	Mr. Muhammad Ishtiaq Ahmed Raja, Advocate
Respondents by	:	Nemo.

ARBAB MUHAMMAD TAHIR, J:- Through the listed appeal, appellant *Zubair Farooq Khan* (judgment debtor/defendant No.4 in main suit) impugns order dated 28.10.2015, passed by the learned Civil Judge 1st Class/Executing Court, Islamabad-West whereby the two applications, one filed by the appellant/judgment debtor and the other by the respondent No.1/decree holder were disposedof with observation that *"the decree holder can withdraw the amount from the court account only to the extent of amount which is liable to be paid by the judgment-debtor/appellant out of Rs.44,00,000/-."*

2. The listed appeal was taken up on 20.09.2016 when notices were ordered to be issued to the respondents. Respondents 2 to 4 failed to turn up despite proclamation in the newspaper and were proceeded against ex-parte vide order, dated 15.01.2019. The appeal was heard along withmain RFA No.35/2012 and being decided through this order for which due audience has been given to learned counsel for the appellant and record has also been examined with his able assistance.

3. Precisely, suit filed by the respondent No.1/plaintiff on 14.10.2005 for the recovery of Rs.44 lacs along with profits due against the appellant and respondents 2 to 4 was decreed vide judgment and decree, dated 31.05.2012. In the suit, except the

UNCERTIFIED COPY

appellant, rest of the defendants i.e. respondents 2 to 4 were proceeded against ex-parte. The decree-holder/respondent No.1 thereafter filed execution petition wherein vide impugned order, the decree-holder was allowed to withdraw the amount of decreeout of the amount deposited by the appellant to the extent of his liability.

4. Record reveals that in main RFA bearing No. 35 of 2012, operation of the impugned judgment and decree was suspended vide order dated 05.07.2012, on application of the appellant bearing No. CMA 01-2012 "*subject to deposit of half of the decretal amount in the Court within 15 days* and for remaining decretal amount a surety bond was furnished." The appellant failed to comply with the direction within the stipulated period of 15 days and after delay of about one year and four months, appellant filed CMA No. 536 of 2013, with prayer that "*the amount of the matter in dispute is the same which has already been deposited with the Court, be considered as amount to be deposited before this Honourable Court."* Though the said application is part of main appeal but it was never taken up for hearing and no order was passed upon the said application. It is thus quite obvious that no injunctive order regarding suspension of operation of impugned judgment and decree was in field.

5. Record further reveals that during pendency of execution petition, the appellant and respondent No.1/decree holder filed separate applications. The former in his application prayed for cancellation of his warrants of arrest on the ground that he had already deposited amount of Rs.23 lac in the Court whereas the latter through his application had prayed for withdrawal of cash surety deposited by the judgment debtor at the time of his post arrest bail, to be disbursed under the orders of competent Court. The said applications were disposed of vide consolidated order dated 28.10.2015, being impugned through the listed appeal, whereby decree holder/respondent No.1 was allowed to withdraw the amount to the extent of appellant/judgment-debtor was liable Rs.14,66,667/- as reveals through the subsequent order dated 13.11.2015. Thereafter, appellant/judgment-debtor also moved an

UNCERTIFIED COPY

application for withdrawal/return of remaining cash surety i.e. Rs.8,33,333/- which was allowed vide order dated 04.03.2016. This aspect, itself reflects acquiesce of the appellant and recognition of the claim, set in by the respondent/plaintiff in his suit. As the impugned order is no more in the field, superseded by the subsequent order referred to above and the execution proceedings to the extent of appellant have already been finalized, therefore, the instant appeal has become infructuous. ***Disposed-of*** accordingly.

(ARBAB MUHAMMAD TAHIR)
JUDGE

Announced in open Court on _____.2024.

JUDGE

AR.Ansari

UNCERTIFIED COPY